IN THE HIGH COURT OF BALOCHISTAN, QUETTA
Present:
* Hon'ble Mr. Justice Syed Mansoor Ali Shah
* Hon'ble Mrs. Justice Ayesha A. Malik

Crl. Appeal No. 467/2021
Citation: PLD 2021 Lah 527
Matter ID: MAT-CRIM-2021-069

BETWEEN:
Ghulam Mustafa ... Appellant / Petitioner
VERSUS
Senior Civil Judge, Rawalpindi ... Respondent

LEGAL TOPIC: Criminal - Murder & Fair Trial
STATUTES CITED: Pakistan Penal Code 1860, S. 302, CrPC 1898, S. 154, S. 161, Constitution Art 10A

JUDGMENT
1. This judgment disposes of Crl. Appeal No. 467/2021, directed against the final judgment rendered by the court below.
2. We have heard the learned counsel for the petitioner as well as the learned Additional Attorney General and perused the record with their able assistance.
3. The principal question requiring determination is:
Whether the impugned order violates principles of natural justice and Article 10A of the Constitution?
4. Learned counsel for the appellant vehemently argued that the statutory safeguards embodied in Pakistan Penal Code 1860, S. 302 were disregarded, thereby causing grave miscarriage of justice. On the contrary, learned counsel for the respondent defended the impugned judgment, asserting that full opportunity of hearing was afforded.
5. Having evaluated the record and relevant case law, it is well-settled that procedural law is handmaid of justice and cannot be weaponized to thwart substantive rights. The evidence on record clearly supports the findings arrived at.
6. HOLDING & RATIO DECIDENDI:
In view of the clear mandate of law laid down under Pakistan Penal Code 1860, S. 302 and guaranteed fundamental rights, this petition is allowed. The impugned judgment is set aside and matter is remanded for decision afresh on merits.

Decided on: 14 October 2021.